

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
NAEEM GRAHAM,**SUMMONS**

Plaintiff,

Index No.:

CITY OF NEW YORK and NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS ONE THROUGH TEN,The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.----- X
To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 6, 2023

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

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New York, New York 10004

(212) 203-1090

TO: City of New York – 100 Church Street, New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NAEEM GRAHAM,

Plaintiff,

CITY OF NEW YORK and NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS ONE THROUGH TEN,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

----- X

Plaintiff NAEEM GRAHAM, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 14, 2020, at approximately 6:00 a.m., Plaintiff Naeem Graham, while lawfully in the vicinity of 206 East 34th Street, Brooklyn, NY 11203, was subject to an unlawful arrest, detention, assault, battery, and excessive use of force by defendant Police Officers. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Naeem Graham is a resident of the state of New York.

3. NYPD Police Officers John/Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

4. NYPD Police Officers John/Jane Does Numbers One Through are being sued in their individual and official capacities.

5. Currently and at all times relevant herein, NYPD Police Officers John/Jane Does Numbers One Through were assigned to the 67th precinct of the NYPD.

6. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

7. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

8. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

9. On February 14, 2020, at approximately 6:00 a.m., Plaintiff was present in the vicinity of 206 East 34th Street, Brooklyn, NY 11203, when the Defendant Officers arrested Plaintiff without legal justification.

10. Defendant Officers, along with SWAT, unlawfully and without probable cause, kicked down Plaintiff's door and entered his home.

11. Plaintiff was asleep when Defendant Officers entered his home.

12. Defendant Officers approached Plaintiff, grabbed him off his bed, and slammed him against the wall.

13. Defendant Officers shove the butt end of a taser into Plaintiff's ribs while he was already incapacitated.

14. Defendant Officers proceeding to slam Plaintiff onto the floor.

15. Defendant Officers actions triggered Plaintiff's anxiety attack.

16. Defendant Officers ignored Plaintiff's visible need for medical attention and arrested him.

17. Defendant Officers transported Plaintiff to the 67th Precinct before transferring him to Central Bookings.

18. While Plaintiff was in custody, the Defendant Officers provided the Kings County District Attorney's Office with false, misleading, and/or incomplete information that Plaintiff committed a crime.

19. Specifically, the Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiff committed attempted murder and assault with a deadly weapon.

20. Plaintiff appeared before a judge and bail was set at \$40,000.

21. Plaintiff remained in custody for a total of seven days before he was released.

22. All criminal charges against Plaintiff were dismissed and sealed on March 9, 2022.

23. While inside Plaintiff's home, Defendant Officers and SWAT had no regards for Plaintiff's belongings and completely ransacked Plaintiff's home.

24. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

25. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

26. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

27. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

28. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

29. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

30. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

31. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

32. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

33. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

34. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

35. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

36. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

37. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

38. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

43. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

44. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

45. The use of excessive force by defendants by, amongst other things, grabbing and throwing Plaintiff into a wall and floor, and shoving the butt end of a taser into Plaintiff's ribs constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Assault

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

48. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

53. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

54. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner by roughly grabbing and throwing Plaintiff onto the wall and floor, and shoving the butt end of a taser into Plaintiff's ribs brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

59. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

60. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

61. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

66. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

67. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

69. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

70. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

71. Defendants failed to intervene to prevent the unlawful conduct described herein.

72. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

73. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

77. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

79. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

80. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

81. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under

the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

82. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

85. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution

86. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

87. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

88. Defendants commenced and continued a criminal proceeding against Plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

90. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TWELFTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

91. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

92. Defendants despite being aware that Plaintiff was suffering from an anxiety attack and required treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

93. The delay in medical treatment to Plaintiff's injuries resulted in an increased severity in Plaintiff's reactions to stimulus that trigger his anxiety that would have been prevented if Plaintiff received treatment in a timely manner.

94. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

97. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

98. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

99. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

100. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

103. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

104. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

105. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

106. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

107. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

108. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

109. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately three days in total.

110. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

111. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

112. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

113. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

114. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

115. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

116. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

117. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

118. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

JURY DEMAND

119. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff NAEEM GRAHAM demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
February 6, 2023

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: City of New York – 100 Church Street, New York, New York 10038

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 6, 2023



CARY LONDON